

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD,

RESPONDENT, and THIRD-PARTY COMPLAINANT

v.

SAMSUNG ELECTRONICS COMPANY, LTD, SAMSUNG SDS GLOBAL SCL ASIA

PACIFIC PTE LTD and SAMSUNG LOGITECH COMPANY, LIMITED,

THIRD-PARTY RESPONDENTS.

JOINT MOTION TO EXTEND AND MODIFY THE DISCOVERY SCHEDULE

Consistent with the Parties' Joint Status Report, filed on November 17, 2025 ("November 17 JSR"), Complainant, Samsung Electronics America, Inc. ("SEA") and Respondent, COSCO Shipping Lines Co., Ltd. ("COSCO") (collectively, the "Parties"), submit this Joint Motion to Extend and Modify the Discovery Schedule ("Joint Motion") in this matter. The Parties respectfully submit that good cause exists for this Joint Motion, and jointly request the relief sought, which will not result in prejudice to any party.

The Parties have made significant progress in discovery to date, but additional fact and expert discovery remain necessary to ensure a complete record. Given the scope of the claims at issue, discovery in this matter is inherently complex and time-consuming, requiring collection, processing, reviewing, compiling, and producing voluminous information, data, and documents. The Federal Maritime Commission has recognized that such circumstances constitute good cause for extending discovery deadlines. *See* Dkt. No. 24-23, *Samsung Electronics America, Inc. v. HMM Co., Ltd. F/K/S Hyundai Merchant Marine Co., Ltd.*, (ALJ Nov. 21, 2025) (finding that good cause exists to grant the Joint Motion to extend discovery beyond the 150-day period due to the large volume and complexity of the case).¹

The proposed schedule, advanced by COSCO and agreed to by SEA, is based on COSCO's representation regarding its anticipated completion of document discovery. SEA has agreed to the proposed schedule on the understanding that it reflects COSCO's anticipated fulfillment of its document production and related logistical arrangements. In further support of this Joint Motion, the Parties state as follows:

1. This case involves multiple claims by SEA against COSCO, a counterclaim by COSCO against SEA, and third-party claims by COSCO. The legal issues are significant, millions of dollars are at stake, and the scope of relevant facts are extensive, requiring numerous records over multiple years. Indeed, SEA's claims involve allegations about "over 22,000 demurrage, detention, and associated charges." Am. Compl. (Doc. 26) ¶ 40.

¹ In *SEA v. HMM*, the parties submitted a joint motion for extension of time. Although the motion was unopposed, the parties requested a status conference to address their considerable efforts during the discovery process and the additional work necessary to ensure a proper record in the administrative proceeding. The Parties will participate in such a status conference if the Presiding Officer deems it appropriate.

2. As explained in the Parties' November 17 JSR, the Parties have been mindful of the Presiding Officer's admonition that the Parties should communicate with each other regularly, try to resolve their issues without intervention by the Presiding Officer, and make any proposals for modification of the schedule jointly. To that end, the Parties have had at least four meetings via videoconference in the last two months and have exchanged numerous letters and emails about the progress and status of discovery and scheduling, including this Joint Motion.

3. The Parties have collected and processed a huge volume of data. SEA has produced 515 gigabytes of data. COSCO has collected more than 1.6 terabytes of data in three different countries, related to thousands of shipments.

4. The Parties have made significant progress so far, producing hundreds of thousands of documents, but the Parties acknowledge that they have not completed producing *all* documents responsive to requests. *See* November 17 JSR at 2 (SEA stating that it has substantially completed its document production, with only two limited matters remaining, for which SEA recently received clarification from COSCO regarding its requests); *id.* at 3-4 (COSCO stating that it continues to produce documents from U.S. custodians, while efforts are underway to review documents in Korea and China in compliance with foreign law). The Parties continued to produce and review documents during the shutdown of the federal government due to the lapse in appropriations, but the Parties need more time to complete processing, review, and production of documents.

5. As COSCO explained in its statement in the November 17 JSR, COSCO has and continues to produce documents on a rolling basis, with the latest production occurring on November 14, 2025. Collecting and processing documents for production has been difficult and time-consuming because electronic data exists in multiple locations, including approximately 1.3

terabytes of data collected in the U.S., approximately 106 gigabytes of data collected in South Korea, and approximately 261 gigabytes of data collected in China. Further, there have been technical difficulties with some collected data from years past, including archived data, which delayed processing and review of some documents. COSCO is also working with separate Chinese counsel to review data in China in compliance with China's laws, which limit the export of certain data, creating significant and time-consuming hurdles for cross-border data sharing and production of documents. COSCO cannot control all eventualities that may result from application of such laws in China, but COSCO is working with Chinese counsel to comply with those laws while striving to produce potentially relevant documents in this matter. COSCO expects to complete production of documents from the U.S. within 30 days but production of documents from South Korea and China will likely take more than 30 days.

6. It is essential that document production be completed prior to completing fact depositions. Proceeding with depositions² before document production is complete would impair the Parties' ability to conduct thorough examinations, risk incomplete testimony, and potentially necessitate costly supplemental depositions.³ Likewise, completion of fact discovery prior to expert discovery is necessary because experts will rely on information and documents produced during fact discovery to complete their analysis and opinions.

² With COSCO documents responsive to SEA requests located in the United States, Korea, and China, there are key witnesses outside of the United States. The scope of these depositions will be refined based on the full scope of documents produced and will be addressed by the Parties in subsequent joint status report submissions as the international nature of these depositions introduces substantial logistical and procedural complexities.

³ In accordance with the Presiding Officer's Order on Fourth Joint Motion for Extension of Time (see Doc. 76 at 2), the Parties discontinued their prior agreement to postpone review of the opposing Party's documents produced. The Parties started and continue to review productions, and their prior agreement to postpone review of documents is *not* a basis for this Joint Motion.

7. The current schedule does not provide sufficient time, specific deadlines, or clarity regarding the scope of now anticipated expert discovery. The current schedule only includes a deadline of December 12, 2025, to begin expert depositions, and a date of January 9, 2026, to complete all discovery, including any expert discovery. There are no deadlines for identification of experts or exchange of affirmative or rebuttal expert reports. As a result, the Parties' proposed modification of the schedule includes essential deadlines to permit orderly and fair expert discovery. *See* Fed. R. Civ. P. 26(a)(2)(D) (sequencing affirmative expert disclosures before rebuttal expert disclosures).

8. As explained in the November 17 JSR, there are also multiple motions pending, including motions to dismiss COSCO's counterclaim and third-party claims of COSCO and motions to quash subpoenas for documents. Resolution of those motions will affect the scope of additional fact discovery, including document discovery, in this matter. Closing fact discovery, including document discovery, prior to resolution of those motions would be unduly prejudicial to the Parties.

CONCLUSION

For the reasons stated above, the Parties respectfully request that the Presiding Officer grant this Joint Motion to extend and modify the schedule as follows:

Event	Current Deadline	Requested Deadline
Production of Documents Completed; Depositions of Fact Witnesses May be Noticed	October 17, 2025	January 16, 2026
Complete Fact Depositions; Expert's Identified	December 12, 2025	March 16, 2026
Expert Reports due; Rebuttal Expert(s) Identified	[NONE]	April 15, 2026
Expert Rebuttal Reports Due	[NONE]	June 1, 2026
Complete Expert Depositions	[NONE]	July 1, 2026

Discovery completed	January 9, 2026	July 1, 2026
Joint Status Report	[None]	July 8, 2026

The Parties thank the Presiding Officer in advance for this consideration.

Respectfully Submitted,

Dated: November 25, 2025

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CERTIFICATE OF SERVICE

I hereby certify that on this 25th day of November, 2025, a true and correct copy of the foregoing Joint Motion to Extend and Modify the Discovery Schedule was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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